

Calendar Lines 1 - 4

Case Name: *Manuel Panilag vs Armando Contreras et al*

Case No.: 24CV434290

The following matters are before the Court: 1) Plaintiff's Motions to Compel Response to RTAO Debtor Discovery; 2) Plaintiff's Motions to Compel Further Response to Special Interrogatories, Set One; and 3) Plaintiff's Motion to Declare Armando Contreras ("Contreras") a Vexatious Litigant.¹

I.

Plaintiff's Motions to Compel Response to RTAO Debtor Discovery & Further Response to Special Interrogatories, Set One

This Court previously found that proceedings were stayed on April 28, 2025. As of April 28, 2025, all briefing dates related to these motions had passed, and these motions were set to be heard on April 29, 2025. The stay having been lifted and orders made during the stay vacated, these motions are returned to the *status quo ante* as of April 28, 2025.²

Plaintiff brings multiple motions to compel (form interrogatories, special interrogatories, request for production of documents, and requests for admission) and a request for sanctions. There is a valid proof of service for the motions and Plaintiff attempted to further meet and confer as ordered by the Court, without success. No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rule of Court, Rule 8.54(c).) Failure to oppose a motion leads to the presumption that Defendants have no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Plaintiff has met his burden of proof for each of the motions. Good cause appearing, the motions are GRANTED.

Defendants shall serve verified, code-compliant responses and responsive documents within 15 days of the date of the hearing on this motion and pay Plaintiff sanctions in the amount of \$5,500, also within 15 days of the date of the hearing on this motion. All objections have been waived.

¹ On April 16, 2026, Contreras filed a "Motion for Clarification of Court's March 19, 2026 Order." This "motion" was noticed for May 8, 2026, but was improperly filed without obtaining a hearing reservation for that date. Moreover, the notice filed on April 16, 2026, provides no statutory or other legal basis for the "motion." Accordingly, any purported "Motion for Clarification" is not on the Court's May 8, 2026 calendar, and the Court will not consider such a "motion" at this hearing. To the extent Contreras believes this "motion" may somehow be considered as part of the hearing on the pending discovery motions, he is incorrect. The Court ordered that there shall be no further briefing on these discovery motions both on February 25, 2025 (Minutes, 2/25/2025) and in its March 19, 2026 order.

² Despite the Court's invitation in its order of March 19, 2026, no party has advised the Court that any aspect of these motions has become factually moot.

II.

Defendant New Chance's Motion for Protective Order

This Court previously found that proceedings were stayed on April 28, 2025. As of April 28, 2025, all briefing dates related to this motion had passed, and this motion was set to be heard on April 29, 2025. The stay having been lifted and orders made during the stay vacated, this motion is returned to the *status quo ante* as of April 28, 2025.³

Defendant New Chance LLC's moves for a protective order regarding Plaintiff's requests for production of documents and first set of debtor interrogatories that he propounded. Defendant New Chance argues that the stated discovery improperly seeks production of documents from Defendants and that it must be protected from unwarranted, annoyance, embarrassment, or oppression, or undue burden or expense. Defendant also seeks monetary sanctions of \$7,500.¹⁵ Plaintiff opposes the motion.

The motion is DENIED in full. Plaintiff is entitled to propound such discovery after the issuance of a Right to Attach Order; further responses and responsive documents shall be provided within 15 days of the date of the hearing on this motion. (Code Civ. Proc., § 485.230). Sanctions in the amount of \$1,230 are awarded to Plaintiff, to be paid by Defendant New Chance LLC, within 15 days of the date of the hearing on this motion.

III.

Plaintiff's Motion to Declare Contreras a Vexatious Litigant

Plaintiff moves the Court "to declare Defendant Armando Contreras a Vexatious Litigant and for a prefiling order prohibiting him from filing any new litigation actions in the courts of this state in propria persona without first obtaining leave of the presiding judge and/or an order requiring Defendant Armando Contreras to post a bond." (Notice of Motion, filed 8/19/2025.)

The gravamen of Plaintiff's argument is that Contreras fits within the description of Code of Civil Procedure section 391 subdivision (b).⁴ That section defines vexatious litigant as follows: "'Vexatious litigant' means a person who does any of the following [including]: [¶] (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 391(b).)

The Court is not persuaded that Contreras's actions have met the standard for declaration as a vexatious litigant. Plaintiff's criticism of Contreras's cross-complaints does not

³ Despite the Court's invitation in its order of March 19, 2026, no party has advised the Court that any aspect of this motion has become factually moot.

⁴ The Court finds Plaintiff's reliance on section 391(b)(1) overstated and unpersuasive. "Litigation" is defined as "any civil action or proceeding" (§ 391(a).) Contreras has not commenced, prosecuted, or maintained in *propria persona* at least five civil action or proceedings resulting in a final adverse determination.

establish that Contreras's efforts are a flagrant abuse of the system or clearly meant to abuse the process. Some of the challenged behavior was not done in *propria persona*. In addition, Contreras prevailed on Plaintiff's most recent motion to strike Contreras's cross-complaint. (March 17, 2026 Order.) The allegation that Contreras has filed a separate action against the same parties who are subject to his cross-complaint is noteworthy, but it cannot at this stage be deemed to make him vexatious. As for Contreras's bankruptcy petitions and appellate activity, the record before the Court is insufficient to establish that these activities were sham or frivolous.

If a vexatious litigant declaration is to be based on repeated motions or filings, "[t]he repeated motions must be so devoid of merit and be so frivolous that they can be described as a " 'flagrant abuse of the system,' " have "no reasonable probability of success," lack "reasonable or probable cause or excuse" and are clearly meant to " 'abuse the processes of the courts and to harass the adverse party than other litigants.' " [Citation.]" (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972.) While some of Contreras's filing activity has been unsuccessful, procedurally improper, and/or failed to make a statutorily required showing, "they cannot be said to be "sham" motions intended solely to harass." (*Wagner, supra*, 156 Cal.App.4th at p. 973.)

The Court is concerned with Plaintiff's allegation that Contreras has served "over 1500 discovery requests." Engaging in unnecessary discovery can make one a vexatious litigant. (Code Civ. Proc., § 391(b).) But to date, it appears any unjustified discovery pursuits on behalf of Contreras upon which the Court has ruled involved his prior counsel and have been addressed by orders denying Contreras's motions to compel and awarding sanctions against him. As for Contreras's compliance with his own discovery obligations and his compliance with court orders, any consequences in those areas remain to be seen, but such behavior does not make him a vexatious litigant.

The fact that New Chance is represented by counsel, as it must be, while Contreras remains in *pro per*, is not determinative of any issue. The Court will not venture into the nuances of any potential attorney-client relationship between Contreras and counsel for New Chance. While Plaintiff says that "Contreras very easily can be represented by the same counsel," it may not be so simple, and the Court will not speculate. That being said, the behavior of New Chance in this litigation, a similarly situated defendant now represented by presumptively competent and reputable counsel, may inform, by way of comparison, the propriety of Contreras's behavior moving forward. The Court hopes it will not have to revisit the question whether Contreras is a vexatious litigant again.

Lastly, with respect to a vexatious litigant declaration, "intent to harass" is a factor in consideration. While the Court is not finding that Contreras is a vexatious litigant on the record currently before it, the Court will remind Contreras that communication, even when couched as legal argument, that involves threats (professional or personal), personal attacks, extensive use of boldface type, and unequivocal accusations of dishonesty, for instance, is rarely helpful or persuasive. Such an approach may invite defensive accusations of harassment and further motions like this one. Dispassionate and reasoned discourse is the way of the law.

The Court will prepare the final order.

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Calendar Line 5 & 6

Case Name: *Ryan Kolstad v. Sarah Ebro*

Case No.: 24CV446807

Before the Court is Defendant Sarah Ebro's ("Defendant") motion to quash service of summons and Plaintiff's motion for an *in camera* review.

This is an action for fraud and invasion of privacy, among other things. Plaintiff Ryan Kolstad ("Plaintiff") alleges that after Defendant breached an oral agreement between the parties for Plaintiff to rent a room inside Defendant's residence, she made false allegations to law enforcement concerning threatening and harassing by Plaintiff in order to retaliate against him and exert control.

Defendant moves to quash service of summons pursuant to Code of Civil Procedure section 418.10, which provides that a defendant, on or before the last day of his time to plead or within any further time that the court for good cause may allow, may move to quash service of summons on the ground of lack of jurisdiction over her. (Code Civ. Proc., § 418.10, subd. (a).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The plaintiff must demonstrate by a preponderance of the evidence that proper service of the summons and complaint was effectuated. (*Boliah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.)

Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421 ("*Craig*").) Once the presumption is dispelled, the trier of fact shall determine the existence or non-existence of the fact from the evidence and any appropriate inferences that may be drawn from it. (*Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1479.) Thus, once the presumption of proper service is gone, the trier of fact must weigh the evidence and decide whether or not service was effected pursuant to the applicable statutory requirements. (See *Craig, supra*, 84 Cal.App.4th at 421-22 ["[I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received."].)

Here, the proof of service filed for the operative Second Amended Complaint ("SAC") states that service was effectuated on Defendant personally on October 20, 2025 at 5:13 p.m. at 595 Gettysberg Drive in San Jose by Krystal M. Wallace, a registered California process server, of Bender's Legal Service, Inc. In order to accomplish personal service, a copy of the summons and complaint must actually be delivered to the person to be served. (Code Civ.